

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 786

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-802, IDAHO CODE, TO REVISE PROVISIONS REGARDING SUPPLEMENTAL MAINTENANCE AND OPERATION LEVIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-802, Idaho Code, be, and the same is hereby amended to read as follows:

33-802. SCHOOL LEVIES. Any tax levied for school purposes shall be a lien on the property against which the tax is levied. The board of trustees shall determine the levies upon each dollar of taxable property in the district for the ensuing fiscal year as follows:

(1) Bond, Interest and Judgment Obligation Levies. Such levies as shall be required to satisfy all maturing bond, bond interest, and judgment obligations.

(2) Budget Stabilization Levies. School districts not receiving state equalization funds in fiscal year 2006 may authorize a budget stabilization levy for calendar year 2006 and each year thereafter. Such levies shall not exceed the difference between the amount of equalized funds that the state department of education estimates the school district will receive in fiscal year 2007, based on the school district's fiscal year 2006 reporting data, and the combined amount of money the school district would have received from its maintenance and operation levy and state property tax replacement funds in fiscal year 2007 under the laws of the state of Idaho as they existed prior to amendment by the first extraordinary session of the fifty-eighth Idaho legislature. The state department of education shall notify the state tax commission and affected counties and school districts of the maximum levy amounts permitted, by no later than September 1, 2006.

(3) Supplemental Maintenance and Operation Levies. No levy in excess of the levy permitted by this section shall be made by a noncharter district unless such a supplemental levy in a specified amount and for a specified time ~~not to exceed two (2) years~~, from one (1) year to a maximum of four (4) years, be first authorized through an election held subject to the provisions of section 34-106, Idaho Code, and pursuant to title 34, Idaho Code, and approved by a majority of the district electors voting in such election. A levy approved pursuant to this subsection may be reduced by a majority vote of the board of trustees in ~~the second year~~ any of the years the levy is authorized.

(4) Charter District Supplemental Maintenance and Operation. Levies pursuant to the respective charter of any such charter district shall be first authorized through an election held subject to the provisions of section 34-106, Idaho Code, and pursuant to title 34, Idaho Code, and approved by a majority of the district electors voting in such election.

1 (5) The board of trustees of any school district that has, for at least
2 seven (7) consecutive years, been authorized through an election held to
3 certify a supplemental levy that has annually been equal to or greater than
4 twenty percent (20%) of the total general maintenance and operation fund,
5 may submit the question of an indefinite term supplemental levy to the elec-
6 tors of the school district. Such question shall clearly state the dollar
7 amount that will be certified annually and that the levy will be for an in-
8 definite number of years. The question must be approved by a majority of the
9 district electors voting on the question in an election held subject to the
10 provisions of section 34-106, Idaho Code, and pursuant to title 34, Idaho
11 Code. The levy approved pursuant to this subsection may be reduced by a ma-
12 jority vote of the board of trustees during any fiscal year.

13 (6) A charter district may levy for maintenance and operations if such
14 authority is contained within its charter. In the event property within a
15 charter district's boundaries is contained in a revenue allocation area es-
16 tablished under chapter 29, title 50, Idaho Code, and such revenue alloca-
17 tion area has given notice of termination thereunder, then, only for the pur-
18 pose of determining the levy described in this subsection, the district may
19 add the increment value, as defined in section 50-2903, Idaho Code, to the
20 actual or adjusted market value for assessment purposes of the district as
21 such value existed on December 31 of the previous year.

22 SECTION 2. An emergency existing therefor, which emergency is hereby
23 declared to exist, this act shall be in full force and effect on and after
24 July 1, 2026.